PARTXIII

COMPARISON OF THE CONSTITUTIONS



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1. 95. World Constitutions

CHAPTER 95 World Constitutions

American Constitution

The American Constitution is the Constitution of the United States of America which was formed in 1787 following the American Revolution (1775–1783). The Constitution was adopted in 1787 at the Philadelphia Convention and came into force in 1789. The salient features of the American Constitution are explained as follows:

1. Written Constitution The American Constitution is usually cited as a classic example of a written Constitution. In fact, it is the oldest among the existing written Constitutions of the world. It is contained in a document of some 12 pages and consists of a Preamble, 7 Articles and 27 Amendments.

2. Rigid Constitution Unlike the British Constitution, the American Constitution is a rigid one. It cannot be amended by the Congress in the same manner as the ordinary laws are made. It can be amended by the Congress only by means of a special process provided by the Constitution for that purpose. Therefore, in the USA, there exists a distinction between a constitutional law and an ordinary law.

The American Constitution, the most rigid constitution in the world, lays down the following two methods for its amendment:

(i) An amendment can be proposed by two-third votes of both the Houses of the Congress. It should be ratified by the legislatures of three-fourths (38 out of 50) of the states within a seven-year time span.